

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABDELALIM ABDELBAKY,

Plaintiff,

- against -

THE CITY OF NEW YORK, P.O. MATTHEW
OMARA, P.O. MICHAEL RACHWALSKI,
and JOHN DOES "1-3", the names
being fictitious and identity
unknown,

Defendants.
-----X

Index No.

Plaintiff designates
New York County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

Plaintiff resides at:
14 Bryant Avenue
Jersey City, NJ 07308

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 8, 2023


JOEL SCHMELKIN, ESQ.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
ABDELALIM ABDELBAKY
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007
P.O MATTHEW OMARA, c/o 1st Precinct, 16 Ericsson Place, NY 10013
P.O. MICHAEL RACHWALSKI, c/o 1st Precinct, 16 Ericsson Place, NY 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABDELALIM ABDELBAKY,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. MATTHEW
OMARA, P.O. MICHAEL RACHWALSKI,
and JOHN DOES "1-3", the names
being fictitious and identity
unknown,

Defendants.

-----X

Plaintiff, **ABDELALIM ABDELBAKY**, complaining of the
defendants, by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby
sets forth and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
May 9, 2022, the plaintiff, **ABDELALIM ABDELBAKY**, was and still is
a resident of State of New Jersey.

2. That, at all times hereinafter mentioned, and on
May 9, 2022, the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
May 9, 2022, the defendant, **P.O. MATTHEW OMARA**, (hereinafter
referred to as "**OMARA**"), was and still is a resident of the City
and State of New York.

4. That, at all times hereinafter mentioned, and on

May 9, 2022, the defendant, **P.O. MICHAEL RACHWALSKI**, (hereinafter referred to as "**RACHWALSKI**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on May 9, 2022, the defendant, "**JOHN DOES 1-3**", the names being **fictitious and identity unknown**, (hereinafter referred to as "**DOES**"), were and still are resident(s) of the City and State of New York.

6. That, the plaintiff, **ABDELALIM ABDELBAKY**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on July 21, 2022, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **ABDELALIM ABDELBAKY**, testified at an oral examination pursuant to the General Municipal Law on January 30, 2023; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That, at all times hereinafter mentioned, and on May 9, 2022, plaintiff **ABDELALIM ABDELBAKY** was present on the sidewalk plaza of West Street, by Fulton Street, in front of "GUCCI", in the County of New York, City and State of New York.

8. That, the plaintiff was selling food and drinks, from a food cart, at the aforementioned location in which he had a license and permit to do so.

9. That, police officers, and/or the defendant and/or defendants had approached the plaintiff and demanded that he produce written documentation authorizing him to sell food at the aforementioned location, which the plaintiff had in fact produced.

10. That, the aforementioned defendant and/or defendants had use profanities towards the plaintiff for no apparent reason, and thereafter had arrested the plaintiff.

11. That, the plaintiff was handcuffed and taken into a police car, against his will, and he was at all times cognizant of this fact, which was done without probable cause, without reasonable cause and without justification

12. That, the plaintiff was taken to the first precinct, and while in route, was punched in the eye, kicked and assaulted, without probable cause, without reasonable cause and without justification, by the defendant and/or defendants.

13. That the food cart of the plaintiff was taken, and was not returned to him for a long and unreasonable time, which caused him to lose property, money, food, and loss of earning potential.

14. That, the plaintiff was ultimately taken, against as will, was not advised of the criminal charges against him while in the custody of the defendant and/or defendants, to central booking, whereby he was searched, and ultimately saw a judge.

15. That the plaintiff was ultimately released on his own recognizance and given a date to appear in court.

16. That the plaintiff thereafter was caused to consult with a medical physician, and had complained of various injuries to parts of his body including but not limited to his head, neck, back, shoulder in which a course of physical therapy was performed due to the severity of the injuries which he sustained here in.

17. That, the plaintiff was caused to undergo a great amount of medical treatment and sustained loss of earnings during this time and thereafter to date.

18. That, the plaintiff, **ABDELALIM ABDELBAKY** was caused to later appear in Criminal Court and ultimately, all charges were dismissed on June 29, 2022.

19. That, as a result of the foregoing, the plaintiff **ABDELALIM ABDELBAKY** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION

(Assault and Battery)

20. That, the plaintiff, **ABDELALIM ABDELBAKY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on May 9, 2022, the plaintiff, **ABDELALIM ABDELBAKY** was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **ABDELALIM ABDELBAKY**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place on the sidewalk plaza of West Street, by Fulton Street, in front of "GUCCI", in the County of New York, City and State of New York and other locations wherein the plaintiff, **ABDELALIM ABDELBAKY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on May 9, 2022, and for sometime prior thereto, defendant, **OMARA**, was a New York City police officer, and/or agent, servant and/or employee of the defendant **THE CITY**, working in the scope and course of his employment as a New York City Police Officer, and

was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on May 9, 2022, and for sometime prior thereto, defendant, **RACHWALSKI**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

26. That, at all times hereinafter mentioned and on May 9, 2022, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

27. That, the aforementioned assault and battery of the plaintiff, **ABDELALIM ABDELBAKY**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

28. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

29. That this action falls within one or more of the

exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

31. That, the plaintiff, **ABDELALIM ABDELBAKY** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 30 with the same force and effect as if hereinafter more fully set forth at length herein.

32. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

33. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring,

negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **OMARA**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **RACHWALSKI**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police

officers, agents, servants, and/or other employees, including, but not limited to defendant, **OMARA**, who was employed by the defendant, **THE CITY**.

38. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **RACHWALSKI**, who was employed by the defendant, **THE CITY**.

39. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

40. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

41. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard

for the safety of others, as well as having performed intentional acts.

42. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

43. That the plaintiff, **ABDELALIM ABDELBAKY** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 42 with the same force and effect as if hereinafter more fully set forth at length herein.

44. That, on May 9, 2022, the plaintiff, **ABDELALIM ABDELBAKY**, was caused to be falsely arrested and falsely imprisoned without probable cause.

45. That, the plaintiff, **ABDELALIM ABDELBAKY**, was arrested without an arrest warrant.

46. That, the false arrest/false imprisonment took place on the sidewalk plaza of West Street, by Fulton Street, in front of "GUCCI", in the County of New York, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **ABDELALIM ABDELBAKY** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY** , was carried out by defendant, **OMARA**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY** , was carried out by defendant, **RACHWALSKI**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY** , was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of their employment with the defendant **THE CITY**.

51. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

52. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

53. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Malicious Prosecution)

54. The plaintiff, **ABDELALIM ABDELBAKY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 53, with the same force and effect as if hereinafter more fully set forth at length herein.

55. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY**, was caused due to a malicious prosecution of the plaintiff, **ABDELALIM ABDELBAKY**, without cause, without reasonable cause, and without color of the law.

56. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other

employees of the defendant, **THE CITY**, failed to make a proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **ABDELALIM ABDELBAKY**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

57. That all criminal harges against the plaintiff, **ABDELALIM ABDELBAKY**, were ultimately dismissed on June 29, 2022.

58. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

59. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

60. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

61. The plaintiff, **ABDELALIM ABDELBAKY** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 60, with the same force and effect as if hereinafter more fully set forth at length herein.

62. That the plaintiff, **ABDELALIM ABDELBAKY** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

63. That at all times hereinafter mentioned, the defendant, **OMARA** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

64. That at all times hereinafter mentioned, the defendant, **RACHWALSKI** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of

the defendant, **THE CITY**.

65. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

66. Defendant, **OMARA**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **OMARA** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

67. Defendant, **RACHWALSKI**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **RACHWALSKI** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make

redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

68. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

69. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **ABDELALIM ABDELBAKY** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **ABDELALIM ABDELBAKY** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **ABDELALIM ABDELBAKY**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **ABDELALIM**

ABDELBAKY, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

70. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

71. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

72. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

73. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

74. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

75. That the detaining of plaintiff, **ABDELALIM ABDELBAKY** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

76. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant, **OMARA's** arrest of the plaintiff **ABDELALIM ABDELBAKY** without probable cause.

77. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant, **RACHWALSKI's** arrest of the plaintiff **ABDELALIM ABDELBAKY** without probable cause.

78. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **ABDELALIM ABDELBAKY** without probable cause.

79. That the deprivation of plaintiff **ABDELALIM ABDELBAKY's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

80. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant, **OMARA's** use of excessive force.

81. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant, **RACHWALSKI's** use of excessive force.

82. That the deprivation of plaintiff, **ABDELALIM ABDELBAKY's** Constitutional rights was the result of the defendant,

DOES use of excessive force.

83. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **ABDELALIM ABDELBAKY**.

84. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **ABDELALIM ABDELBAKY** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

85. That, by reason of the foregoing, the plaintiff **ABDELALIM ABDELBAKY** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

86. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional

acts.

87. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

88. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **ABDELALIM ABDELBAKY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

90. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

93. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

94. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

95. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

96. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

97. That the plaintiff, **ABDELALIM ABDELBAKY**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 96 with the same force and effect as if hereinafter more fully set forth at length herein.

98. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **ABDELALIM ABDELBAKY**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

99. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

100. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

102. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

103. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

104. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

105. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Failure to Intervene)

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. The defendants that did not physically touch

plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

108. Defendants failed to intervene to prevent the unlawful conduct described herein.

109. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

110. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

112. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

114. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

115. As a result of the aforementioned conduct of defendants, plaintiff sustained personal injuries, including but not limited to emotional and psychological injuries.

116. That, by reason of the foregoing, the plaintiff, **ABDELALIM ABDELBAKY**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **ABDELALIM ABDELBAKY**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
May 8, 2023

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
ABDELALIM ABDELBAKY
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New York, New York 10007
(212) 227-8865

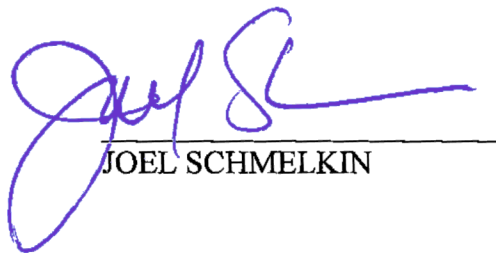
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
May 8, 2023


JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ABDELALIM ABDELBAKY,

Plaintiff,

-against-

THE CITY OF NEW YORK, ET AL.,

Defendants.

SUMMONS AND COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Abdelalim Abdelbaky

Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: MAY 8, 2023

Signature

JOEL SCHMELKIN

Print Signer's Name

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on 20 , at M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

29 of 29

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR